

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

----- X

**SUMMONS**

BRIAN CAREW,

Index No.:

Plaintiff,

The Basis of Venue is:  
Location of Incident

-against-

THE CITY OF NEW YORK, POLICE OFFICER JOSEPH  
AGRAMONTE, Tax No. 968919, POLICE OFFICER  
DAMIAN SANTIAGO, Tax No. 967684, SERGEANT  
JAMES RAHILL, Tax No. 952141, and POLICE  
OFFICERS JOHN DOES #s 1-10 (names and numbers of  
whom are unknown at present),

Plaintiff designates Bronx  
County as the place of trial.

Defendants.

----- X

**To the above-named Defendants:**

**You are hereby summoned** to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York  
March 30, 2024

Yours, etc.

*David M. Hazan*

JACOBS & HAZAN, PLLC  
DAVID M. HAZAN, ESQ.  
Attorney for Plaintiff  
30 Vesey Street, 4<sup>th</sup> Floor  
New York, New York 10007  
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007  
POLICE OFFICER JOSEPH AGRAMONTE, Tax No. 968919, 50<sup>th</sup> Precinct, 3450  
Kingsbridge Ave, Bronx, NY 10463  
POLICE OFFICER DAMIAN SANTIAGO, Tax No. 967684, 50<sup>th</sup> Precinct, 3450  
Kingsbridge Ave, Bronx, NY 10463  
SERGEANT JAMES RAHILL, Tax No. 952141, 50<sup>th</sup> Precinct, 3450 Kingsbridge Ave,  
Bronx, NY 10463

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

----- X

BRIAN CAREW,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JOSEPH  
AGRAMONTE, Tax No. 968919, POLICE OFFICER  
DAMIAN SANTIAGO, Tax No. 967684, SERGEANT  
JAMES RAHILL, Tax No. 952141, and POLICE  
OFFICERS JOHN DOES #s 1-10 (names and numbers of  
whom are unknown at present),

Defendants.

----- X

Plaintiff BRIAN CAREW, by his attorneys, Jacobs & Hazan, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

**PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on March 30, 2021, at 12:30 am the individually named NYPD police officer defendants falsely arrested and subjected plaintiff to the use of excessive force inside of his apartment located at 290 West 232<sup>nd</sup> Street, Bronx, New York. Thereafter, the defendant officers fabricated allegations against plaintiff and initiated a criminal prosecution against him, without probable cause, maliciously prosecuted plaintiff and denied plaintiff the right to due process. The excessive force used by the officers while they were arresting plaintiff caused plaintiff to suffer injuries to his left knee. Additionally, plaintiff had a severe asthma attack while the officers were arresting him, and he had to take his asthma medication so that he could breathe. Plaintiff was unlawfully handcuffed and transported to the 50<sup>th</sup> Precinct against his will, whereat he was unlawfully searched, fingerprinted and photographed. The handcuffs were applied to plaintiff's wrists in an excessively tight manner that caused plaintiff pain to his wrists. Plaintiff asked the officers to loosen the handcuffs, but the officers did not loosen the handcuffs. Plaintiff was transported to Jacobi Hospital from the precinct via ambulance to receive treatment for the injuries caused to him by the officers, including the injuries to his left knee and wrists. Plaintiff was arraigned in Bronx Criminal

Court on March 31, 2021, at approximately 1:00 pm, and he was charged with crimes he did not commit and that the officers lacked probable cause to accuse him of committing. Plaintiff was released on his own recognizance at arraignment. An ACS investigation was initiated against plaintiff because of the false allegations alleged against him. Additionally, plaintiff was not permitted to return home during the pendency of the criminal prosecution because of the false allegations alleged against him. The ACS investigation terminated in Plaintiff's favor and there was no wrongdoing by plaintiff found. Plaintiff made several appearances in Bronx Criminal Court and all charges were dismissed and sealed and terminated in plaintiff's favor on June 1, 2021. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully frisked, searched, interrogated, falsely arrested, maliciously prosecuted, denied plaintiff the right to due process/ right to a fair trial and subjected plaintiff to the use of excessive force in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

### **PARTIES**

2. Plaintiff BRIAN CAREW is a resident of the state of New York.

3. Defendant POLICE OFFICER JOSEPH AGRAMONTE, Tax No. 968919, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant POLICE OFFICER JOSEPH AGRAMONTE, Tax No. 968919, was at all times relevant herein, assigned to the 50<sup>th</sup> Precinct.

5. Defendant POLICE OFFICER JOSEPH AGRAMONTE, Tax No. 968919, is being sued in his individual and official capacity.

6. Defendant POLICE OFFICER DAMIAN SANTIAGO, Tax No. 967684, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant POLICE OFFICER DAMIAN SANTIAGO, Tax No. 967684, was at all times relevant herein, assigned to the 50<sup>th</sup> Precinct.

8. Defendant POLICE OFFICER DAMIAN SANTIAGO, Tax No. 967684, is being sued in his individual and official capacity.

9. Defendant SERGEANT JAMES RAHILL, Tax No. 952141, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant SERGEANT JAMES RAHILL, Tax No. 952141, was at all times relevant herein, assigned to the 50th Precinct.

11. Defendant SERGEANT JAMES RAHILL, Tax No. 952141, is being sued in his individual and official capacity.

12. Defendant New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

### **STATEMENT OF FACTS**

18. By way of background, on March 30, 2021, plaintiff lived with his wife and two-month year old son in their apartment located at 290 West 232nd Street, Bronx, New York.

19. Plaintiff is the natural father of his son and at all times relevant herein plaintiff and his wife shared custody of their son and neither parent had custody rights to their child that were not afforded to the other parent.

20. On the night of March 29, 2021, plaintiff and his wife got into a verbal argument over money and their finances while they were inside of their apartment.

21. Plaintiff became very frustrated with his wife during the argument, and he took his frustration out by damaging property he owned that was in the apartment.

22. At no time relevant herein did plaintiff physically assault his wife, his child or anyone else.

23. Plaintiff left his apartment with his child to avoid any additional argument with his wife that night.

24. Plaintiff took his child with him when he left the apartment because his wife was very angry and emotional and did not think it was safe to leave his child alone with his wife.

25. After rethinking whether he should leave the apartment with their child, plaintiff reentered his apartment with his child a couple of minutes after he left.

26. When plaintiff returned to his apartment his wife was not present, and plaintiff sat down calmly and rocked his son to sleep while holding him gently in his arms.

27. Plaintiff's wife thought plaintiff left the building with their child and she left their apartment to go look for them.

28. A neighbor heard the argument between plaintiff and his wife and heard his wife screaming at plaintiff as plaintiff left their apartment and the neighbor called 911 and requested police assistance.

29. On March 30, 2021, at approximately 12:30 am the individually named NYPD police officer defendants, arrived at 290 West 232nd Street, Bronx, New York and met plaintiff's wife in front of the building because she was searching for plaintiff.

30. Plaintiff's wife told the officers that plaintiff left their apartment and took their child with him, and she was primarily concerned for the safety of their child.

31. Plaintiff's wife admitted to the officers that plaintiff and her had equal rights to the custody of their child.

32. Plaintiff's wife was not physically injured, and she did not accuse plaintiff of physically assaulting her.

33. After plaintiff's wife and the defendant police officers were unable to locate plaintiff outside of the apartment building, the officers returned to plaintiff's apartment with his wife and his wife let the officers into the apartment.

34. Plaintiff's wife waited outside of the apartment as the officers entered the apartment.

35. The defendant police officers entered the apartment and found plaintiff lawfully present inside of his apartment, calmly holding his two-month-old son in his arms.

36. Plaintiff's son was not injured whatsoever and was peacefully sleeping when the officers entered the apartment.

37. The officers approached plaintiff in a manner where they were uncomfortably close to plaintiff and his child.

38. Plaintiff told the officers he would speak to them, but he asked them to back away from him.

39. However, the officers did not listen to plaintiff, and they backed plaintiff up against a wall inside of the apartment, and asked plaintiff to put his child down.

40. Plaintiff did not put his child down and told the officers that he did not need to put his child down in order to speak with them.

41. Then, without warning, the defendant police officers forcefully attempted to grab plaintiff's child and pulled the child forcefully from plaintiff's arms.

42. The defendant officers pushed plaintiff to the ground while he was still holding his child.

43. The defendant officers also grabbed the legs and arms of plaintiff's child and attempted to pull the child away from plaintiff while the officers were also pushing plaintiff to the ground.

44. The defendant officers were able to pull plaintiff's child away from plaintiff, but the officers used unreasonable and excessive force against plaintiff and his child while they pulled his child from his arms.

45. The officers injured plaintiff's child's arm and leg and his child required medical treatment for the injuries caused by the officers.

46. At no time relevant herein did plaintiff physically injure his child or his wife.

47. Plaintiff's child was taken to the hospital to have the injuries caused by the officers treated, but the officers called child protective services and falsely alleged that plaintiff was strangling the child when they forcefully removed the child from his arms.

48. An ACS investigation against plaintiff was initiated based upon the officers' false allegations against plaintiff.

49. ACS ultimately exonerated plaintiff of the officers' allegations because the police officers' body camera footage clearly showed that plaintiff was never strangling his child and the officers used excessive force to pull plaintiff's child from his arms without any legal basis to do so.

50. The officers unlawfully handcuffed and falsely arrested plaintiff without probable cause or legal justification.

51. They also assaulted, battered and subjected plaintiff to excessive force when they tackled him to the ground and pulled his child from his arms.

52. Plaintiff also suffered injuries to his hand when he fell to the ground.

53. The excessive force used by the officers while they were arresting plaintiff caused plaintiff to suffer injuries to his left knee.

54. Additionally, plaintiff had a severe asthma attack while the officers were arresting him, and he had to take his asthma medication so that he could breathe.

55. The handcuffs were applied to plaintiff's wrists in an excessively tight manner that caused plaintiff pain to his wrists.

56. Plaintiff asked the officers to loosen the handcuffs, but the officers did not loosen the handcuffs.

57. Plaintiff was transported to the 50th precinct against his will whereat he was unlawfully searched, fingerprinted, photographed and detained in a holding cell for many hours.

58. . Plaintiff was transported to Jacobi Hospital from the precinct via ambulance to receive treatment for the injuries caused to him by the officers, including the injuries to his left knee and wrists.

59. After he was released from the hospital, plaintiff was transported to Bronx Central Booking whereat plaintiff was unlawfully detained in several large holding cells with numerous other prisoners.

60. Plaintiff was arraigned in Bronx Criminal Court on March 31, 2021 at approximately 1:00 pm, approximately 36 hours after he was arrested, and plaintiff was charged with committing crimes he did not commit and that the officers lacked probable cause to accuse him of committing, including but not limited to Attempted Assault, Harassment, Criminal Mischief, and Criminal Possession of a Weapon.

61. The defendant officers provided the District Attorney's Office with false, misleading and incomplete information and evidence regarding the officer's basis for arresting plaintiff and charging him with crimes.



62. The false, misleading and incomplete allegations made by the defendant officers against plaintiff formed the basis for initiating a criminal prosecution against plaintiff and charging him with crimes he did not commit, without probable cause.

63. Due to the nature of the charges filed against plaintiff, an order of protection was issued against him that required him to stay away from his home, his wife, and his child throughout the pendency of the criminal prosecution.

64. Plaintiff abided by the Order of Protection, but it caused plaintiff to suffer from severe emotional distress because he had to find a place to stay and could not see his family or his newborn son.

65. At arraignment, plaintiff was released from custody on his own recognizance and given a date to return to court to address the charges.

66. Plaintiff made several appearances in Bronx Criminal Court and all charges were dismissed and sealed in their entirety and terminated in plaintiff's favor on June 1, 2021.

67. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

68. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully frisked, searched, interrogated, falsely arrested, maliciously prosecuted, subjected to the use of excessive force, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

69. Defendants falsely arrested and maliciously prosecuted plaintiff, without probable cause or legal justification.

70. Defendants violated plaintiff's right to due process when they provided the District Attorney's Office with false, misleading, and incomplete evidence which formed the basis for initiating the criminal prosecution against plaintiff.

71. The individually named defendant police officers have significant histories of having complaints filed against them by members of the public for engaging in police misconduct as NYPD police officers and violating the Constitutional Rights of members of the public, but the discipline by the NYPD on each of those occasions was insufficient to prevent the officers from continuing to engage in such misconduct because the NYPD does not sufficiently investigate allegations that a police officer violated the Constitutional Rights of an individual and did not sufficient punish defendants for the misconduct they previously engaged in.

72. Numerous complaints and lawsuits have been filed against the individually named defendants by members of the public throughout their careers, but most of the time the NYPD conducted a cursory investigation into the complaints and concluded that it did not possess enough evidence to determine whether defendants engaged in misconduct and therefore did not discipline them for many of the complaints made against them.

73. Defendants have continued to violate the Constitutional Rights of members of the public because they never suffered any significant consequences for engaging in the unlawful behavior in the past and apparently feel as if they can continue engaging in the unlawful behavior without any serious consequences.

74. The deliberate indifference by the NYPD and defendant City of New York towards its officers and defendants when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because defendants knew that there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

75. Given defendants' histories of allegations of violating the Constitutional Rights of members of the public, defendants should not have been patrolling the streets of New York and/or supervising other officers at the time of plaintiff's arrest in this case, and plaintiff's rights may not have been violated if the defendant City of New York had properly investigated and disciplined defendants and other officers throughout the NYPD prior to the date of plaintiff's arrest in this case.

76. The City of New York is deliberately indifferent to and fails to properly address situations when NYPD officers have engaged in police misconduct and violated the rights of members of the public.

77. The unlawful search, false arrest, false imprisonment, malicious prosecution, and denial of the right to due process/ a fair trial by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

### **FIRST CAUSE OF ACTION**

#### **Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights**

78. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully searched, frisked, questioned, seized, denied due process, falsely arrested and falsely imprisoned, and maliciously prosecuted, without probable cause, in violation of plaintiff's right to be free from an unreasonable seizure

under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

## **SECOND CAUSE OF ACTION**

### **False Arrest and False Imprisonment**

80. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

82. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

## **THIRD CAUSE OF ACTION**

### **Unlawful Search**

85. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.

86. The illegal approach, pursuit, stop and search inside plaintiff's pockets and underneath his clothing, employed by defendants herein, and terminated plaintiff's freedom of movement through means intentionally applied.

87. Defendants lacked probable cause to search plaintiff.

88. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

90. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

### **FOURTH CAUSE OF ACTION**

#### **Malicious Prosecution**

91. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

93. Defendants commenced and continued criminal proceedings against plaintiff.

94. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

95. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

96. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

97. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

### **FIFTH CAUSE OF ACTION**

#### **Violation of Plaintiff's Fifth Amendment and Fourteenth**

##### **Amendment Rights**

##### **Denial of Due Process/ Right to a Fair Trial**

98. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 97 with the same force and effect as if fully set forth herein.

99. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

100. Defendants filled out false and misleading police reports and a summons and forwarded them to the Bronx County Criminal Court.

101. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process/ a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

102. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

103. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

### **SIXTH CAUSE OF ACTION**

#### **Violation of Plaintiff's Fourth and Fourteenth Amendment Rights**

104. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 103 with the same force and effect as if more fully set forth at length herein.

105. The use of excessive force by defendants by throwing plaintiff to the ground, forcefully pulling plaintiff's child from his arms, and handcuffing plaintiff in an unreasonably tight manner and refusing to loosen the handcuffs were objectively unreasonable physical seizures of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

106. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

107. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological, and economic injuries.

## **SEVENTH CAUSE OF ACTION**

### **Failure to Intervene**

108. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 107 with the same force and effect as if more fully set forth at length herein.

109. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

110. Defendants failed to intervene to prevent the unlawful conduct described herein.

111. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

112. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

## **EIGHTH CAUSE OF ACTION**

### **Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution**

113. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 112 with the same force and effect as if more fully set forth at length herein.

114. Plaintiff was unlawfully searched, interrogated, frisked, falsely arrested, maliciously prosecuted plaintiff, and denied plaintiff then right to due process without an objective factual legal basis to seize, arrest and prosecute plaintiff pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

115. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally frisk, search, interrogate, falsely arrest, and fabricate evidence, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

116. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

117. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful frisk, search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, and falsely arrest members of the public when there is no factual basis to suspect the individual has committed a crime.

118. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

119. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

120. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

121. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

122. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

123. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

124. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein

### **JURY DEMAND**

125. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

### **PRAYER FOR RELIEF**

**WHEREFORE**, plaintiff BRIAN CAREW demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York  
March 30, 2024

By: David M. Hazan  
DAVID M. HAZAN  
JACOBS & HAZAN, PLLC  
Attorneys for Plaintiff  
30 Vesey Street, 4<sup>th</sup> Floor  
New York, NY 10007  
(212) 577-2690

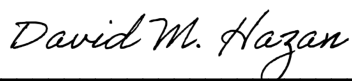


**ATTORNEY'S VERIFICATION**

**DAVID M. HAZAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York  
March 30, 2024



---

DAVID M. HAZAN